

DJJ BRISBANE PTY LTD (ACN 12 670 617 482)
HIRE AGREEMENT TERMS AND CONDITIONS

DJJ BRISBANE PTY LTD is referred to as "DJJ Brisbane"

1. Lessor (DJJ Brisbane) hires to Lessee (renter) and Lessee (renter) hires from Lessor (DJJ Brisbane) the Equipment described overleaf (hereinafter referred to as the "Equipment" which word shall to refer to each and every part thereof) subject to and upon the terms & conditions herein contained.
2. Lessee agrees to pay Lessor at the date hereof the trucking charges (if any) set out overleaf and as therein provided the rental charges as invoice by Lessor. The rental charges are based on the rates set out overleaf for the term of this lease. In the event that the Equipment is used in excess of the maximum hours set out overleaf for the relevant period the Lessee agrees to pay the Lessor upon demand for each hour or any part thereof during which the Equipment is so used an hourly rental calculated in accordance with the overtime charge set out overleaf. Hours of use shall be determined by the hour meter or other mechanical device used to record hours of use supplied with the Equipment. If no device is provided or it is faulty Lessee shall immediately notify Lessor and the Lessor's determination of the hours during which the Equipment was used by the Lessee shall be final and binding, Any payments of rent not made on the due date shall at Lessors option, bear interest at the rate of 15% per annum from such due date until paid.
3. The term of this hiring and the rental charges shall commence from the "date of dispatch" described overleaf and shall terminate on the "return date" described overleaf. At the expiration of the term (or of any extended term) the Lessee shall forthwith return the Equipment at Lessee's expense to the Lessor's warehouse described overleaf or as the Lessor otherwise directs in writing in the same condition as when dispatched to the Lessee reasonable wear and tear only excepted. If the Lessee fails to return the Equipment at the expiration of the term this hiring shall be deemed to be extended on a day to day basis at the daily rental rate specified overleaf and on the same terms and conditions until the Equipment is returned as aforesaid.
4. Equipment shall at all times be located and used at the place described overleaf as "Location of Equipment on Lease". Equipment is hired f.o.b from the Lessor's warehouse. Lessee will permit Lessor to inspect Equipment at all reasonable times.
5. The agreement term is stated on the agreement and the Lessee agrees to honour the term stated and is committed to that term in full. If the unit is to be off hired prior to the term ending, the Lessee agrees to payout the agreement based on the remaining value of the agreed term.
6. Unless transport of Equipment is undertaken by Lessor, Lessee is responsible for any damage to Equipment in the course of transport.
7. Lessor shall effect dispatch of the Equipment on or before the "date required" overleaf but if for any reason dispatch is not affected by that date Lessor shall not be liable for any loss suffered by Lessee thereby and the hiring shall be deemed to commence from the "date of despatch" and all charges and obligations shall be payable and enforceable from that date provided that if the despatch if not affected within three (3) days after the "date required" described overleaf without any default by Lessee then Lessee or Lessor may by written notice to the other terminate this agreement whereupon it shall be deemed to be null and void from its inception.
8. In addition to rental and trucking charges Lessee shall pay on demand to Lessor all duties fees and assessments charged or levied upon or rising out of the execution of this agreement and the use possession or operation of the Equipment. Lessee shall affect all necessary registrations (except to any limited extent agreed in writing with Lessor) and obtain all necessary licenses in connection with Lessee's use possession and operation of the Equipment. Lessee shall observe and comply with the provisions of all statutes, rules,

regulations and by-laws made with regard to the use to which the equipment is put, the operation or possession of the Equipment and the place where the Equipment is used.

9. Lessee shall not replace any parts of or make any alterations or additions to the Equipment without the prior written consent of the Lessor. All additions, replacements or alterations of whatsoever kind and nature made to the Equipment shall become the property of the Lessor.
10. Lessor shall supply tyres as per quotation.
11. Lessee agrees to take proper care of the Equipment, to use it within its rated capacity, to restrict its use to Lessee's qualified personnel and prohibit anyone other than Lessor's authorised personnel to repair, modify or adjust the Equipment and to notify Lessor immediately of accidents, disabilities, failure or like occurrence concerning the Equipment. Lessee further agrees to pay without prejudice to the Lessor's rights and remedies for all damage to the Equipment resulting from improper use or abuse of the Equipment and for tyres as assessed by Lessor on receipt from the Lessor of an invoice for the cost and expenses of repair and replacement. Lessee shall provide for normal operating needs of Equipment including supply of fuel, oil, grease and water, daily checking of general condition including oil levels, cooling system, water and batteries and re-charging batteries all in accordance with Lessor's instructions and will take such other action in respect of the Equipment required by the Lessor from time to time and at any time.
12. Rental Rates subject to annual CPI Increase.
13. Lessor will service and maintain Equipment in proper working condition and Lessee agrees to make it available for servicing by Lessor at reasonable times during Lessor's normal business hours – Monday to Friday 8.00am – 5.00pm. If Lessee requires service at times other than Lessor's normal business hours and Lessor agrees to do such service Lessee agrees to pay all additional costs and expenses incurred by the Lessor in consequence thereof. Lessee agrees that Lessor shall not be liable to Lessee nor shall this agreement be impugned for Lessor's failure to repair, service or maintain Equipment or to furnish suitable Equipment for any reason whatsoever and that Lessor is not nor shall be liable for special or consequential damages of any nature whatsoever or however caused.
14. Lessee shall at its own expense carry adequate public liability insurance in respect of Equipment and its possession, use and operation and against bodily injury, death and property damage and will if requested by Lessor furnish to lessor certificates of such insurance providing for at least ten (10) days prior to notice of cancellation. All such insurance shall be with loss payable to Lessor (with its interest noted on the policy) and shall be with a company acceptable to Lessor.
15. Lessee is responsible for loss of and damage to Equipment and accepts responsibility for all risk and liability arising from the possession, operation and use of Equipment howsoever imposed and the repair or maintenance thereof whether by Lessor or any other person including damages for injury or death to persons and injury to or destruction of property howsoever arising there from or because thereof. Lessee shall indemnify save and hold Lessor and its assigns harmless from any and all of the following, whether same be actual or alleged; all claims, penalties, liabilities and expenses, including legal fees, howsoever arising or incurred because of Equipment or this agreements of the storage or the repair or maintenance as aforesaid use operation or possession or return to Lessor thereof.
16. Lessee acknowledges that no warranties or representations of any kind expressed or implied have been made by Lessor or any other person. Lessor shall have the right to determine the type of operation on or in which the Equipment may be employed and the suitability of the Equipment for the use to which it is to be put.
17. If Lessee fails to pay any rental or other sums payable hereunder or in consequence hereof when due or fails to perform or observe any term or condition hereof or misuses the Equipment or puts it to use which Lessor regards as unsuitable or uses Equipment in operation not approved by Lessor or becomes insolvent or dies or commits an act of bankruptcy or goes into liquidation or has a resolution to wind it up passed or proposed or a ground arises upon which a court may order the winding up of Lessee or suffers

appointment of a Receiver or if execution or distress is levied against Lessee or any of Lessee's goods, or if any insurance proposal made by Lessee in respect of Equipment is declined or cancelled or if Lessee fails to return Equipment upon termination of this hiring or within three (3) working days from notice from Lessor during any period of holding over the in any of such events Lessor may immediately terminate this agreement by written notice to Lessee and repossess Equipment wherever it may be found but without prejudice to any action or remedy which Lessor has or might otherwise could have for arrears of rent or breach of covenant or for damages as a result of any such event. Lessee agrees to pay all expenses including legal fees incurred by Lessor in enforcing Lessor's rights hereunder and in collecting rental and other sums hereunder and in repossessing Equipment together with interest at the rate of 15% per annum on all such expenses until paid by Lessee. The remedies herein provided in favor of Lessor shall not be deemed exclusive but shall be cumulative and shall be in addition to all other remedies in Lessor's favor existing by law or in equity.

18. Any notice or demand to be given or made hereunder on or to Lessee shall be deemed sufficiently given and made if in writing and delivered to Lessee, personally, or sent by mail addressed to Lessee at its address described overleaf. Such notice or demand shall be deemed given and made on date of delivery or day following date of posting (as the case may be).
19. The parties acknowledge that this Agreement constitutes a Security Agreement for the purposes of the Personal Property Securities Act 2009 (Cth) (PPSA):
20. Lessor (DJJ Brisbane) hires to Lessee (renter) and Lessee (renter) hires from Lessor (DJJ Brisbane) the Equipment described overleaf (hereinafter referred to as the "Equipment" which word shall to refer to each and every part thereof) subject to and upon the terms & conditions herein contained.
21. Lessee agrees to pay Lessor at the date hereof the trucking charges (if any) set out overleaf and as therein provided the rental charges as invoice by Lessor. The rental charges are based on the rates set out overleaf for the term of this lease. In the event that the Equipment is used in excess of the maximum hours set out overleaf for the relevant period the Lessee agrees to pay the Lessor upon demand for each hour or any part thereof during which the Equipment is so used an hourly rental calculated in accordance with the overtime charge set out overleaf. Hours of use shall be determined by the hour meter or other mechanical device used to record hours of use supplied with the Equipment. If no device is provided or it is faulty Lessee shall immediately notify Lessor and the Lessor's determination of the hours during which the Equipment was used by the Lessee shall be final and binding, Any payments of rent not made on the due date shall at Lessors option, bear interest at the rate of 15% per annum from such due date until paid.
22. The term of this hiring and the rental charges shall commence from the "date of dispatch" described overleaf and shall terminate on the "return date" described overleaf. At the expiration of the term (or of any extended term) the Lessee shall forthwith return the Equipment at Lessee's expense to the Lessor's warehouse described overleaf or as the Lessor otherwise directs in writing in the same condition as when dispatched to the Lessee reasonable wear and tear only excepted. If the Lessee fails to return the Equipment at the expiration of the term this hiring shall be deemed to be extended on a day to day basis at the daily rental rate specified overleaf and on the same terms and conditions until the Equipment is returned as aforesaid.
23. Equipment shall at all times be located and used at the place described overleaf as "Location of Equipment on Lease". Equipment is hired f.o.b from the Lessor's warehouse. Lessee will permit Lessor to inspect Equipment at all reasonable times.
24. The agreement term is stated on the agreement and the Lessee agrees to honour the term stated and is committed to that term in full. If the unit is to be off hired prior to the term ending, the Lessee agrees to payout the agreement based on the remaining value of the agreed term.
25. Unless transport of Equipment is undertaken by Lessor, Lessee is responsible for any damage to Equipment in the course of transport.

26. Lessor shall effect dispatch of the Equipment on or before the "date required" overleaf but if for any reason dispatch is not affected by that date Lessor shall not be liable for any loss suffered by Lessee thereby and the hiring shall be deemed to commence from the "date of despatch" and all charges and obligations shall be payable and enforceable from that date provided that if the despatch is not affected within three (3) days after the "date required" described overleaf without any default by Lessee then Lessee or Lessor may by written notice to the other terminate this agreement whereupon it shall be deemed to be null and void from its inception.
27. In addition to rental and trucking charges Lessee shall pay on demand to Lessor all duties fees and assessments charged or levied upon or rising out of the execution of this agreement and the use possession or operation of the Equipment. Lessee shall affect all necessary registrations (except to any limited extent agreed in writing with Lessor) and obtain all necessary licenses in connection with Lessee's use possession and operation of the Equipment. Lessee shall observe and comply with the provisions of all statutes, rules, regulations and by-laws made with regard to the use to which the equipment is put, the operation or possession of the Equipment and the place where the Equipment is used.
28. Lessee shall not replace any parts of or make any alterations or additions to the Equipment without the prior written consent of the Lessor. All additions, replacements or alterations of whatsoever kind and nature made to the Equipment shall become the property of the Lessor.
29. Lessor shall supply tyres as per quotation.
30. Lessee agrees to take proper care of the Equipment, to use it within its rated capacity, to restrict its use to Lessee's qualified personnel and prohibit anyone other than Lessor's authorised personnel to repair, modify or adjust the Equipment and to notify Lessor immediately of accidents, disabilities, failure or like occurrence concerning the Equipment. Lessee further agrees to pay without prejudice to the Lessor's rights and remedies for all damage to the Equipment resulting from improper use or abuse of the Equipment and for tyres as assessed by Lessor on receipt from the Lessor of an invoice for the cost and expenses of repair and replacement. Lessee shall provide for normal operating needs of Equipment including supply of fuel, oil, grease and water, daily checking of general condition including oil levels, cooling system, water and batteries and re-charging batteries all in accordance with Lessor's instructions and will take such other action in respect of the Equipment required by the Lessor from time to time and at any time.
31. Rental Rates subject to annual CPI Increase.
32. Lessor will service and maintain Equipment in proper working condition and Lessee agrees to make it available for servicing by Lessor at reasonable times during Lessor's normal business hours – Monday to Friday 8.00am – 5.00pm. If Lessee requires service at times other than Lessor's normal business hours and Lessor agrees to do such service Lessee agrees to pay all additional costs and expenses incurred by the Lessor in consequence thereof. Lessee agrees that Lessor shall not be liable to Lessee nor shall this agreement be impugned for Lessor's failure to repair, service or maintain Equipment or to furnish suitable Equipment for any reason whatsoever and that Lessor is not nor shall be liable for special or consequential damages of any nature whatsoever or however caused.
33. Lessee shall at its own expense carry adequate public liability insurance in respect of Equipment and its possession, use and operation and against bodily injury, death and property damage and will if requested by Lessor furnish to lessor certificates of such insurance providing for at least ten (10) days prior to notice of cancellation. All such insurance shall be with loss payable to Lessor (with its interest noted on the policy) and shall be with a company acceptable to Lessor.
34. Lessee is responsible for loss of and damage to Equipment and accepts responsibility for all risk and liability arising from the possession, operation and use of Equipment howsoever imposed and the repair or maintenance thereof whether by Lessor or any other person including damages for injury or death to persons and injury to or destruction of property howsoever arising there from or because thereof. Lessee shall indemnify save and hold Lessor and its assigns harmless from any and all of the following, whether same be actual

or alleged; all claims, penalties, liabilities and expenses, including legal fees, howsoever arising or incurred because of Equipment or this agreements of the storage or the repair or maintenance as aforesaid use operation or possession or return to Lessor thereof.

35. Lessee acknowledges that no warranties or representations of any kind expressed or implied have been made by Lessor or any other person. Lessor shall have the right to determine the type of operation on or in which the Equipment may be employed and the suitability of the Equipment for the use to which it is to be put.
36. If Lessee fails to pay any rental or other sums payable hereunder or in consequence hereof when due or fails to perform or observe any term or condition hereof or misuses the Equipment or puts it to use which Lessor regards as unsuitable or uses Equipment in operation not approved by Lessor or becomes insolvent or dies or commits an act of bankruptcy or goes into liquidation or has a resolution to wind it up passed or proposed or a ground arises upon which a court may order the winding up of Lessee or suffers appointment of a Receiver or if execution or distress is levied against Lessee or any of Lessee's goods, or if any insurance proposal made by Lessee in respect of Equipment is declined or cancelled or if Lessee fails to return Equipment upon termination of this hiring or within three (3) working days from notice from Lessor during any period of holding over the in any of such events Lessor may immediately terminate this agreement by written notice to Lessee and repossess Equipment wherever it may be found but without prejudice to any action or remedy which Lessor has or might otherwise could have for arrears of rent or breach of covenant or for damages as a result of any such event. Lessee agrees to pay all expenses including legal fees incurred by Lessor in enforcing Lessor's rights hereunder and in collecting rental and other sums hereunder and in repossessing Equipment together with interest at the rate of 15% per annum on all such expenses until paid by Lessee. The remedies herein provided in favor of Lessor shall not be deemed exclusive but shall be cumulative and shall be in addition to all other remedies in Lessor's favor existing by law or in equity.
37. Any notice or demand to be given or made hereunder on or to Lessee shall be deemed sufficiently given and made if in writing and delivered to Lessee, personally, or sent by mail addressed to Lessee at its address described overleaf. Such notice or demand shall be deemed given and made on date of delivery or day following date of posting (as the case may be).
38. The parties acknowledge that this Agreement constitutes a Security Agreement for the purposes of the Personal Property Securities Act 2009 (Cth) (PPSA):
 1. the Renter grants a Security Interest in the Equipment to the Lessor;
 2. the Lessor will register its Security Interest in the Equipment, and if this Agreement constitutes a PPS Lease, as a Purchase Money Security Interest on the PPS Register;
 3. where the PPSA applies to action taken by the Lessor in relation to the Equipment the Renter agrees that:
 4. the Renter grants a Security Interest in the Equipment to the Lessor;
 5. the Lessor will register its Security Interest in the Equipment, and if this Agreement constitutes a PPS Lease, as a Purchase Money Security Interest on the PPS Register;
 6. where the PPSA applies to action taken by the Lessor in relation to the Equipment the Renter agrees that:
1. the Renter grants a Security Interest in the Equipment to the Lessor;
2. the Lessor will register its Security Interest in the Equipment, and if this Agreement constitutes a PPS Lease, as a Purchase Money Security Interest on the PPS Register;
3. where the PPSA applies to action taken by the Lessor in relation to the Equipment the Renter agrees that:

4. the Renter grants a Security Interest in the Equipment to the Lessor;
 5. the Lessor will register its Security Interest in the Equipment, and if this Agreement constitutes a PPS Lease, as a Purchase Money Security Interest on the PPS Register;
 6. where the PPSA applies to action taken by the Lessor in relation to the Equipment the Renter agrees that:
 1. sections 116(2), 120, 125, 142 and 143 of the PPSA will not apply; and
 2. the Renter waives its right to receive notices under sections 95, 118(1)(b), 121(4), 123(2), 130, 135, 132(3)(d) and 132(4) and any verification statement;
 3. sections 116(2), 120, 125, 142 and 143 of the PPSA will not apply; and
 4. the Renter waives its right to receive notices under sections 95, 118(1)(b), 121(4), 123(2), 130, 135, 132(3)(d) and 132(4) and any verification statement;
1. sections 116(2), 120, 125, 142 and 143 of the PPSA will not apply; and
 2. the Renter waives its right to receive notices under sections 95, 118(1)(b), 121(4), 123(2), 130, 135, 132(3)(d) and 132(4) and any verification statement;
 3. sections 116(2), 120, 125, 142 and 143 of the PPSA will not apply; and
 4. the Renter waives its right to receive notices under sections 95, 118(1)(b), 121(4), 123(2), 130, 135, 132(3)(d) and 132(4) and any verification statement;
1. sections 116(2), 120, 125, 142 and 143 of the PPSA will not apply; and
 2. the Renter waives its right to receive notices under sections 95, 118(1)(b), 121(4), 123(2), 130, 135, 132(3)(d) and 132(4) and any verification statement;
 3. sections 116(2), 120, 125, 142 and 143 of the PPSA will not apply; and
 4. the Renter waives its right to receive notices under sections 95, 118(1)(b), 121(4), 123(2), 130, 135, 132(3)(d) and 132(4) and any verification statement;

and

1. d) the terms "Security Agreement", "Security Interest", "Purchase Money Security Interest" and "PPS Register" in this clause have the same meaning ascribed to them in the PPSA.
2. This is a rental agreement only and nothing herein conveys to Lessee any right title or interest in or to Equipment except as Lessee. Lessee shall not in any way assign charge or otherwise deal with Equipment or this agreement. Lessor may in any way assign charge or otherwise deal with this agreement and its interest in Equipment or otherwise hereunder.
3. This agreement shall be constructed and interpreted according to the law of the state of QLD and this law shall be proper law thereof. Lessor and Lessee hereby agree that in any dispute between any of them arising under this agreement the court of QLD shall have jurisdiction to hear and determine the dispute
4. d) the terms "Security Agreement", "Security Interest", "Purchase Money Security Interest" and "PPS Register" in this clause have the same meaning ascribed to them in the PPSA.
5. This is a rental agreement only and nothing herein conveys to Lessee any right title or interest in or to Equipment except as Lessee. Lessee shall not in any way assign charge or otherwise deal with Equipment or this agreement. Lessor may in any way assign charge or otherwise deal with this agreement and its interest in Equipment or otherwise hereunder.
6. This agreement shall be constructed and interpreted according to the law of the state of QLD and this law shall be proper law thereof. Lessor and Lessee hereby agree that in any

dispute between any of them arising under this agreement the court of QLD shall have jurisdiction to hear and determine the dispute.

EQUIPMENT WAIVER

For hire contracts on equipment which DJJ Brisbane deems subject to our Equipment Waiver, the following terms apply in addition to our standard terms & conditions.

The Customer may pay an additional Equipment Waiver fee being (12% of the weekly hire cost) in relation to the hire of equipment, which will;

(a) reduce the Insurance Excess in relation to theft, loss or damage beyond repair

Equipment Waiver is not insurance, but is an agreement by DJJ Brisbane that the Customer's liability for theft, loss or damage beyond repair of the Equipment can be limited in some circumstances only to an amount called the Theft Waiver Excess. DJJ Brisbane will ask the Customer to pay the Equipment Waiver fee on the hire equipment, unless DJJ Brisbane agrees to accept a certificate of insurance provided by the Customer at its own cost. The reduced Excess which apply to when the Equipment Waiver fee is paid will be as per below:

Equipment Waiver will NOT apply where DJJ Brisbane determines that any of the following applicable circumstances have occurred, unless the Customer is able to establish otherwise to the reasonable satisfaction of DJJ Brisbane.

THEFT – EQUIPMENT WAIVER DOES NOT APPLY AND WILL NOT LIMIT THE CUSTOMER'S LIABILITY FOR THEFT in the following circumstances;

(a) where the Customer has failed to keep the Equipment in a securely locked Compound, or in the case of a Motor Vehicle, has failed to properly secure or lock the Motor Vehicle; or

(b) where the Customer has failed to submit to DJJ Brisbane a Police Report on the theft within 7 days of the theft allegedly occurring. In the event of Theft Waiver applying, hire fees will be charged to the Customer until the Police Report is provided to DJJ Brisbane.

DAMAGE BEYOND REPAIR – EQUIPMENT WAIVER DOES NOT APPLY AND WILL NOT LIMIT THE CUSTOMER'S LIABILITY in the following circumstances;

(a) where the operator is not suitably licensed;

(b) where the operator is affected by drugs and/or alcohol;

(c) where the equipment has been wilfully damaged by the Customer or its employees or agents;

(d) where the damage is caused by a collision with a bridge, carpark, awning, gutter, tree or any other overhead structure or object whatsoever due to insufficient clearance;